

N-OvateUS Foundation Inc.

ARTICLES OF INCORPORATION – NONPROFIT (GEORGIA)

ARTICLE I

NAME AND ORGANIZATION

1.01 Name

The legal name of this corporation shall be **N-OvateUS Foundation Inc.** The business of the corporation will be conducted as N-OvateUS Foundation Inc.

1.02 Organization

N-OvateUS Foundation Inc is organized in accordance with Georgia Nonprofit Corporation Code.

ARTICLE II

DURATION

2.01 Duration

The period of duration of the corporation shall be perpetual.

ARTICLE III

PURPOSE

3.01 Purpose

N-OvateUS Foundation Inc is a non-profit corporation organized exclusively for charitable and educational purposes, including, for such purposes, the making of distributions to organizations that qualify as exempt organizations, under Section 501 (c)(3) of the Internal Revenue Code, or the corresponding section of any future federal tax code and pursuant to the Georgia Nonprofit Corporation Code.

N-OvateUS Foundation Inc's purpose is to create a lasting and positive impact on the tech, sports, and entertainment industries by developing an inclusive and collaborative ecosystem. We are driven by the belief innovation knows no boundaries and the power of this collective effort can reshape the world. N-OvateUS is dedicated to nurturing a vibrant and inclusive community of pioneers in the dynamic realms of tech, sports, and entertainment industries.

The mission of N-OvateUS Foundation Inc is to foster an inclusive and collaborative environment that celebrates diversity, expertise, and creativity, driving positive change and inspiring the next generation of female and male pioneers in the dynamic fields of tech, sports, and entertainment.

3.02 Public Benefit

N-OvateUS Foundation Inc is designated as a public benefit corporation.

ARTICLE IV

NON-PROFIT NATURE / BENEFITS

4.01 Non-profit Nature

N-OvateUS Foundation Inc is not organized and shall not be operated for the private gain of any person. The property of the corporation is irrevocably dedicated to its charitable, religious, educational or scientific purposes. No part of the assets, receipts, or net earnings of the corporation shall inure to the benefit of, or be distributed to, any individual. The corporation may, however, pay reasonable compensation for services rendered, and make other payments and distributions consistent with these Articles.

4.02 Personal Liability

No officer or director of this corporation shall be personally liable for the debts or obligations of N-OvateUS Foundation Inc of any nature whatsoever, nor shall any of the property or assets of the officers or directors be subject to the payment of the debts or obligations of this corporation.

4.03 Dissolution

Upon termination or dissolution of N-OvateUS Foundation Inc, any assets lawfully available for distribution shall be distributed to one or more qualifying organizations described in Section 501(c)(3) of the Internal Revenue Code of 1986 (or described in any corresponding provision of any successor statute), which organization or organizations shall have a charitable purpose which, at least generally, includes a purpose similar to the terminating or dissolving corporation.

Dissolution shall take place in accordance with The Georgia Nonprofit Corporation Code, O.C.G.A. § 14-3-101.

The organization to receive the assets of N-OvateUS Foundation Inc hereunder shall be selected by the discretion of a majority of the managing body of N-OvateUS Foundation Inc, and if its members cannot so agree, then the recipient organization shall be selected pursuant to a verified petition in equity filed in a court of proper jurisdiction against N-OvateUS Foundation Inc by one or more of its managing body, which verified petition shall contain such statements as reasonably indicate the applicability of this section. The court upon a finding that this section is applicable shall select the qualifying organization or organizations to receive the assets to be distributed, giving preference if practicable to organizations located within Georgia.

In the event the court shall find that this section is applicable but that there is no qualifying organization known to it which has a charitable purpose which, at least generally, includes a purpose similar to this corporation, then the court shall direct the distribution of its assets lawfully available for distribution to the Treasurer of the State of Georgia to be added to the general fund.

4.03 Prohibited Distributions

No part of the net earnings, or properties of this corporation, on dissolution or otherwise, shall inure to the benefit of, or be distributable to, its members, directors, officers or other private person or individual, except that the corporation shall be authorized and empowered to pay reasonable compensation for services rendered and to make payments and distributions in furtherance of the purposes set forth in Article III, Section 3.01.

4.04 Restricted Activities

No substantial part of the corporation's activities shall be the carrying on of propaganda, or otherwise attempting to influence legislation, and the corporation shall not participate in, or intervene (including the publishing or distribution of statements) in any political campaign on behalf of or in opposition to any candidate for public office.

4.05 Prohibited Activities

Notwithstanding any other provision of these Articles, the corporation shall not carry on any activities not permitted to be carried on (a) by a corporation exempt from federal income tax as an organization described by Section 501(c)(3) of the Internal Revenue Code, or the corresponding section of any future federal tax code, or (b) by a corporation, contributions to which are deductible under Section 170(c)(2) of the Internal Revenue Code, or the corresponding section of any future federal tax code.

ARTICLE V

BOARD OF DIRECTORS

5.01 Governance

N-OvateUS Foundation Inc shall be governed by its board of directors.

5.02 Initial Directors

The initial directors of the corporation shall be Tye Hayes, René Chatfield, and Valorie Salahuddin.

ARTICLE VI

MEMBERSHIP

6.01 Membership

N-OvateUS Foundation Inc shall have no members. The management of the affairs of the corporation shall be vested in a board of directors, as defined in the corporation's bylaws.

ARTICLE VII

AMENDMENTS

7.01 Amendments

Any amendment to the Articles of Incorporation may be adopted by approval of two-thirds (2/3) of the board of directors.

ARTICLE VIII

ADDRESSES OF THE CORPORATION

8.01 Corporate Address

The physical address of the corporation is: **5600 Roswell Rd., Building C, Sandy Springs, GA 30342**

The mailing address of the corporation is: **3651 Peachtree Pkwy, STE E-339, Suwanee, GA 30024.**

The county of the registered office is **Gwinnett County.**

ARTICLE IX

APPOINTMENT OF REGISTERED AGENT

9.01 Registered Agent

The registered agent of the corporation shall be:

Valorie Salahuddin
3651 Peachtree Parkway
E-339
Suwanee, Georgia 30024

ARTICLE X

INCORPORATOR

The incorporator of the corporation is:

Rene Chatfield
3629 Brookleigh Lane NE
Brookhaven, GA 30319

Certificate of Adoption of Articles of Incorporation

I, the undersigned, do hereby certify that the above-stated Articles of Incorporation of N-OvateUS Foundation Inc were approved by the Board of Directors on 02/01/2024 and constitute a complete copy of Articles of Incorporation of the N-OvateUS Foundation Inc.

Rene Chatfield, Incorporator

Acknowledgment of consent to appointment as registered agent:

I, the undersigned, agree to be the registered agent for N-OvateUS Foundation Inc as appointed herein.

Registered Agent

Valorie Salahuddin (signed electronically - 2/6/2024)

Valorie Salahuddin